

Maan Singh v. State of U.P.

Allahabad High Court · Division Bench · 22 September 2017 · Writ-C No. 45644 of 2017 · **Listed in the next cause list; Clause 6.5 remedy noted.**

HEADNOTE

On a writ disputing the correctness of an electricity bill, the Court recorded that the petitioners have a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. As none appeared for the petitioners, the petition was listed in the next cause list without a merits disposal or a direction to pursue Clause 6.5.

FACTUAL SUMMARY

Maan Singh and another petitioned the Allahabad High Court disputing the correctness of an electricity bill, impleading the State of U.P. and another. Counsel for the respondents appeared. None appeared for the petitioners. The Court noted a Clause 6.5 Supply Code remedy for the billing dispute and, on that non-appearance, directed that the writ be listed in the next cause list.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-remedy

HOLDING

A consumer disputing the correctness of an electricity bill has a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The Court recorded that remedy but, as none appeared for the petitioners, listed the writ in the next cause list without relegating the petitioners or deciding the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 On a writ disputing the correctness of an electricity bill, the Court recorded that the petitioners have a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND WHETHER THE WRIT SHOULD BE DISPOSED BY RELEGATING THE PETITIONERS TO CLAUSE 6.5

The Court noted the Clause 6.5 remedy but listed the petition for non-appearance. ¶ 1